

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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LEONARDO VILLAR,

Index No.:

Plaintiff,

SUMMONS

-against-

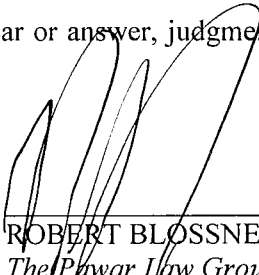
THE CITY OF NEW YORK, P.O. SHANIQUEA CLARK,
P.O. JOHN MOISE, P.O. CHARLIE FERNANDEZ,
SGT. FUGGY,

Plaintiff designates Bronx
County as the place of trial
Plaintiff resides at:
3434 Knox Place
Bronx, New York 10467

Defendants.
-----X

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff (s) Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is completed if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 8, 2018



ROBERT BLOSSNER, ESQ.
The Pinar Law Group, PC
Attorney for Plaintiff
Office & P.O. Address:
20 Vesey Street, Suite 1210
New York, NY 10007
Tel. No.: (212)571-0805

Defendants' Addresses:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, New York 10007

P.O. CHARLIE FERNANDEZ
42nd Precinct
830 Washington Avenue
Bronx, NY 10451

P.O. SHANIQUEA CLARK
42nd Precinct
830 Washington Avenue
Bronx, NY 10451

SGT. FUGGY
42nd Precinct
830 Washington Avenue
Bronx, NY 10451

P.O. JOHN MOISE
42nd Precinct
830 Washington Avenue
Bronx, NY 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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LEONARDO VILLAR,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. SHANIQUEA CLARK,
P.O. JOHN MOISE, P.O. CHARLIE FERNANDEZ,
SGT. FUGGY,

Defendants.
-----X

Index No.:

Date Filed:

COMPLAINT

Jury Trial Demand

Venue: BRONX COUNTY

The plaintiff, **LEONARDO VILLAR** by his attorney, **ROBERT BLOSSNER, ESQ.**, complaining of the defendants respectfully alleges, upon information and belief, as follows:

1. Plaintiff **LEONARDO VILLAR**, a sixty-year old man, is a recovering heroin addict.
2. Plaintiff **LEONARDO VILLAR** participates in a methadone clinic program to assist him in his recovery.
3. Plaintiff **LEONARDO VILLAR** is a resident of the Bronx, County of Bronx, and State of New York.
4. Plaintiff **LEONARDO VILLAR** has been enrolled in the methadone clinic for decades.
5. Plaintiff **LEONARDO VILLAR** also has end stage liver disease.
6. Defendant **CITY OF NEW YORK ("CITY")** is a municipal corporation who oversees the NYPD.

7. Defendant **SHANQUA CLARK** ("**CLARK**") is/was a NYPD officer at the time of the incident assigned to the 42nd precinct.

8. Defendant **JOHN MOISE** ("**MOISE**") is/was a NYPD officer at the time of the incident assigned to the 42nd precinct.

9. Defendant **SGT. FUGGY** ("**FUGGY**") is/was a NYPD officer at the time of the incident assigned to the 42nd precinct.

10. Defendant **CHARLIE FERNANDEZ** ("**FERNANDEZ**") is/was a NYPD officer at the time of the incident assigned to the 42nd precinct.

11. In the year 2015, plaintiff **LEONARDO VILLAR** was arrested by **CLARK, MOISE, FUGGY, and FERNANDEZ** on three (3) separate occasions.

12. While the date of the arrests differed (1/22/15), (4/22/15), and (7/1/15), the nature of the arrest and the criminal charges that followed were the same.

13. On each occasion, plaintiff **LEONARDO VILLAR** was falsely arrested by the same defendants **CLARK, MOISE, FUGGY, and FERNANDEZ** for selling a controlled substance.

14. On each occasion, plaintiff **LEONARDO VILLAR** was arrested around 11 a.m., near a methadone clinic in the Bronx (around 168th street and Franklin) brought to the 42nd precinct, strip-searched, held for 48 hours by **CLARK, MOISE, FUGGY, and FERNANDEZ** and then released ROR by the Court.

15. On each occasion, the charges against the plaintiff **LEONARDO VILLAR** were dismissed on 3/15/15 for the first arrest, 8/7/15 for the second arrest and 8/4/15 for the third arrest.

16. On each occasion, defendants **CLARK, MOISE, FUGGY, and FERNANDEZ** lied and stated that plaintiff **LEONARDO VILLAR** sold controlled substance, filled out numerous paperwork (including the arrest report, criminal court complaint, case-ready checklist, memo books, command log and affidavits among other items) to falsely arrest plaintiff and commence prosecution against plaintiff.

17. On each occasion, defendants **CLARK, MOISE, FUGGY, and FERNANDEZ** lied and fabricated evidence and police paperwork to implicate plaintiff **LEONARDO VILLAR** on the false charges.

18. Plaintiff **LEONARDO VILLAR** had to appear in court on numerous occasions until the false charges against him were terminated in his favor.

AS AND FOR A FIRST CAUSE OF ACTION
(False Arrest/Seizure under 42 U.S.C. 1983)

19. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

20. Defendants **CLARK, MOISE, FUGGY, and FERNANDEZ** arrested plaintiff on three (3) separate occasions for false charges. They strip-searched him and held him for 48 hours without probable cause. Plaintiff did not possess any illegal substance, let alone sell them.

21. As a result of defendants' conduct plaintiff suffered constitutional injuries.

AS AND FOR A SECOND CAUSE OF ACTION
(Malicious Prosecution/Denial of Fair Trial under 42 U.S.C. 1983)

22. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

23. Defendants **CLARK, MOISE, FUGGY, and FERNANDEZ** falsified police documents and initiated criminal proceedings against the plaintiff.

24. Defendants **CLARK, MOISE, FUGGY, and FERNANDEZ** knew that by forwarding the police documents to the DA's office, plaintiff would be prosecuted. They acted with malice because they did not have probable cause to even arrest plaintiff. They also falsified documents claiming plaintiff had sold drugs. All the criminal charges against the plaintiff were dismissed in his favor.

25. As a result of defendants' conduct plaintiff suffered constitutional injuries.

AS AND FOR A THIRD CAUSE OF ACTION

(Municipal Liability against the CITY)

26. Plaintiff repeats and realleges all of the foregoing paragraphs as if fully set forth herein.

27. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

28. The aforementioned customs, usages, and practices of the **CITY** included, but were not limited to, arresting, assaulting individuals suspected of crimes without due process. In addition, the **CITY** engaged in a custom or practice of inadequate screening, hiring, retaining, training, disciplining and supervising its employees, which was the moving force behind the violation of Plaintiff **LEONARDO VILLAR's** rights as described herein.

29. In addition, the Defendant's superior officers whose duty it was to review and

screen all arrests for propriety upon presentation by the officer seeking to make an arrest routinely ratified such arrests without questioning the facts underlying same.

30. Furthermore, the individual defendants have a practice and custom of ignoring the mandates of the patrol guide, which requires them to prepare several forms before, and after an arrest is made. As a result of the failure of the **CITY** to properly recruit, screen, train, discipline, and supervise its officers, including the individual Defendants, Defendants have tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein

31. Furthermore, individual defendants from the 42nd precinct routinely arrest minorities like Plaintiff **LEONARDO VILLAR** without probable cause to obtain overtime and increase their quota. The 42nd precinct has faced numerous lawsuit regarding this from their own members from the NYPD and the public. However, supervisory and municipal defendants turn a blind eye to this false information, fail to discipline or train the individual defendants and the false arrests and malicious prosecutions continue. In addition, defendants routinely file false charges against innocent individuals to justify their need to make quotas or overtime. The foregoing customs and practices have resulted in multiple judgments against the **CITY** involving similar facts and finding of Municipal liability. The foregoing were the direct and proximate cause and the moving force of the constitutional violations suffered by Plaintiff **LEONARDO VILLAR** as alleged herein.

WHEREFORE, Plaintiffs demand judgment and pray for the following relief, jointly and severally, against the defendants:

(A) Full and fair compensatory damages in an amount Five Hundred Thousand Dollars for each and every cause of action for each plaintiff against defendants (individually or collectively) or as determined by a jury:

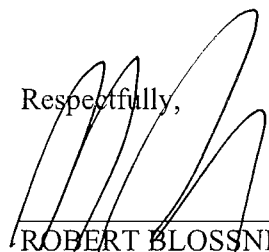
(B) Punitive damages in an amount to be determined by a jury:

(C) Reasonable attorney's fees and the costs, expenses and disbursements of the action;
and

(D) Such other and further relief as appears just and proper.

Dated: New York, New York
March 5, 2018

Respectfully,



ROBERT BLOSSNER, ESQ.
Pawar Law Group, P.C.
Attorneys for Plaintiffs
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New York, New York 10007
Tel. No.: (212) 571-0805